

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1033

By: Kendrix

AS INTRODUCED

An Act relating to sunset; amending 59 O.S. 2021, Section 698.3, which relates to the State Board of Veterinary Medical Examiners; re-creating the Board; and modifying the termination date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 698.3, is amended to read as follows:

Section 698.3. A. The State Board of Veterinary Medical Examiners is hereby re-created, to continue until July 1, ~~2025~~ 2026, in accordance with the provisions of the Oklahoma Sunset Law, to regulate and enforce the practice of veterinary medicine in this state in accordance with the Oklahoma Veterinary Practice Act.

B. 1. The duty of determining a person's initial and continuing qualification and fitness for the practice of veterinary medicine, of proceeding against the unlawful and unlicensed practice of veterinary medicine and of enforcing the Oklahoma Veterinary Practice Act is hereby delegated to the Board. That duty shall be

1 discharged in accordance with the Oklahoma Veterinary Practice Act
2 and other applicable statutes.

3 2. a. It is necessary that the powers conferred on the Board
4 by the Oklahoma Veterinary Practice Act be construed
5 to protect the health, safety and welfare of the
6 people of this state.

7 b. No member of the Board, acting in that capacity or as
8 a member of any Board committee, shall participate in
9 the making of any decision or the taking of any action
10 affecting such member's own personal, professional or
11 pecuniary interest, or that of a person related to the
12 member within the third degree by consanguinity,
13 marriage or adoption or of a business or professional
14 associate.

15 c. With advice of legal counsel, the Board shall adopt
16 and annually review a conflict of interest policy to
17 enforce the provisions of the Oklahoma Veterinary
18 Practice Act.

19 C. The practice of veterinary medicine is a privilege granted
20 by the people of this state acting through their elected
21 representatives. It is not a natural right of individuals. In the
22 interest of the public, and to protect the public, it is necessary
23 to provide laws and rules to govern the granting and subsequent use
24 of the privilege to practice veterinary medicine. The primary
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1 responsibility and obligation of the Board is to protect the public
2 from the unprofessional, improper, incompetent and unlawful practice
3 of veterinary medicine.

4 D. The liability of any member or employee of the Board acting
5 within the scope of Board duties or employment shall be governed by
6 The Governmental Tort Claims Act.

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